

response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

**12. 9:00 AM CASE NUMBER: L26-00496
CASE NAME: GVD RENOVATIONS, INC. VS. DOES 1-25
HEARING ON DEMURRER TO: ANSWER
FILED BY: GVD RENOVATIONS, INC.
*TENTATIVE RULING:***

The amended complaint and amended cross complaint have alleged damages of over \$35,000, and have indicated that this case is an unlimited civil matter.

This case will be reclassified as unlimited civil.

Partie are to pay proper filing fees, after which the Court Clerk's Office will assign the matter to the unlimited civil department.

**13. 9:00 AM CASE NUMBER: L26-00496
CASE NAME: GVD RENOVATIONS, INC. VS. DOES 1-25
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: GVD RENOVATIONS, INC.
*TENTATIVE RULING:***

he amended complaint and amended cross complaint have alleged damages of over \$35,000, and